

An Act

ENROLLED SENATE
BILL NO. 2095

By: Kern of the Senate

and

Townley of the House

An Act relating to game and fish; defining terms; prohibiting residents and nonresidents from the taking of certain game for compensation without certain licenses; specifying requirements for certain licenses; setting fees for certain licenses; creating misdemeanor offense; requiring certain license revocation upon conviction; requiring court to transmit certain information; defining term; providing exceptions; providing penalties; providing for codification; and providing an effective date.

SUBJECT: Game and fish

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 5-202.2 of Title 29, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Guide" means a person who is compensated by a licensed outfitter to help the outfitter furnish personal services for the conduct of waterfowl or crane hunting activities directly related to the conduct of activities for which the employing outfitter is licensed; and

2. "Outfitter" means a person who holds his or her business operation out to the public for hire or consideration; provides

facilities or services for consideration; maintains, leases, or otherwise provides compensation for the use of land and receives compensation from a third party for use of such land; or uses equipment or accommodations for consideration for the conduct of waterfowl or crane hunting activities.

B. Except as otherwise provided in the Oklahoma Wildlife Conservation Code, no person shall assist, accompany, transport, guide, outfit, or aid persons in the taking of waterfowl or crane for compensation or other consideration in this state without first procuring a hunting outfitter or hunting guide license from the Director of Wildlife Conservation or from any authorizing agent of the Department of Wildlife Conservation.

C. For the purposes of this section, written permission may be written or electronic information containing the name and phone number of the landowner or agricultural lessee and the name of the person who has been granted permission to carry out the activities specified in subsection B of this section.

D. 1. The hunting outfitter shall be:

- a. eighteen (18) years of age or older,
- b. able to produce a valid driver license or other proof of identification, age, and residency. Any license provided shall show such data, and shall include the date of issuance, and
- c. able to produce an insurance policy indicating a personal liability coverage of no less than One Million Dollars (\$1,000,000.00).

2. All persons applying for a hunting guide license shall be:

- a. eighteen (18) years of age or older, and
- b. able to produce a valid driver license or other proof of identification, age, and residency. Any license provided shall show such data, and shall include the date of issuance.

3. The outfitter may employ any assistants as necessary, and any person providing direct oversight of the hunting or assisting with the hunting in the field shall possess a hunting guide license and operate under a licensed outfitter. A licensed outfitter may also provide the direct oversight of the hunting services.

E. The licenses provided in this section and the maximum fee for each license shall be:

1. Annual hunting outfitter license for a resident not to exceed One Thousand Dollars (\$1,000.00);

2. Annual hunting outfitter license for a nonresident not to exceed Two Thousand Dollars (\$2,000.00);

3. Annual hunting guide license for assistants or helpers of an outfitter for a resident not to exceed One Hundred Dollars (\$100.00); and

4. Annual hunting guide license for assistants or helpers of an outfitter for a nonresident not to exceed Two Hundred Dollars (\$200.00).

F. The provisions of this section shall not:

1. Apply to resident landowners who provide such services on properties they own or hold under an agricultural lease, nor shall they apply to guides who are employees or direct agents acting on behalf of the landowner on property the landowner owns or holds under an agricultural lease;

2. Apply to individuals on lands licensed by the Department as a commercial hunting area or lands licensed as a feral hog hunting facility by the Oklahoma Department of Agriculture, Food, and Forestry;

3. Exempt a resident or nonresident procuring a hunting guide or outfitter license pursuant to this section from any other hunting licenses as required by law;

4. Allow a hunting guide license holder to conduct business on any land publicly owned, managed, or leased by the Department of

Wildlife Conservation or the Oklahoma Tourism and Recreation Department; or

5. Apply to lessees of rural land who provide such services on properties leased by such individuals as a farming or ranching business pursuant to Section 951 of Title 18 of the Oklahoma Statutes or, if they indicated to the landowner or lessor, if the primary use of the leased land is agricultural.

G. Any person convicted of violating any provisions of this section shall, upon conviction, be guilty of a misdemeanor punishable by a fine not less than One Thousand Five Hundred Dollars (\$1,500.00) nor more than Two Thousand Dollars (\$2,000.00), by imprisonment in the county jail for thirty (30) days, or by both such fine and imprisonment.

H. Any person convicted of a second or subsequent violation of any provisions of this section shall, upon conviction, be guilty of a misdemeanor punishable by a fine not less than One Thousand Five Hundred Dollars (\$1,500.00) nor more than Two Thousand Dollars (\$2,000.00), by imprisonment in the county jail for not less than six (6) months, or by both such fine and imprisonment.

I. Any hunting outfitter license or hunting guide license issued to a person by the Department of Wildlife Conservation shall be automatically revoked upon conviction of the person of a violation of subsection B of this section or a violation of Section 5-202 of Title 29 of the Oklahoma Statutes. The revocation shall be for a period set by the court of not less than one (1) year nor more than ten (10) years. If the court does not set a period, the revocation shall be for one (1) year from the date the conviction becomes final. During this period of revocation, the Department shall not issue the person a hunting outfitter license or hunting guide license or any other hunting or fishing license. If the court does not set a period, the Department shall not issue the person a license before the first anniversary of the date the conviction becomes final.

J. Any hunting outfitter license or hunting guide license of a person convicted of a second or subsequent violation of the provisions of this section shall be automatically revoked. The revocation shall be for a period set by the court of not less than

three (3) years nor more than ten (10) years. If the court does not set a period, the revocation shall be for three (3) years from the date the conviction becomes final. During this period of revocation, the Department shall not issue the person a hunting outfitter license or hunting guide license or any other hunting or fishing license. If the court does not set a revocation period, the Department shall not issue the person a license within three (3) years of the conviction of the person pursuant to this section.

K. A person who has a license revoked pursuant to this section shall surrender the revoked license to the court, or the court may order the defendant to surrender the license directly to an officer from the Department of Wildlife Conservation present at the hearing. If the license is surrendered to the court, the court shall send the Department the revoked license. The court shall also send the Department a copy of the judgment of conviction. In lieu of sending a paper copy of the documents and information required by this subsection, the court clerk may transmit the conviction information using an electronic method authorized by the Department.

L. For purposes of this section, "conviction" shall include a plea of guilty or nolo contendere to an offense or the imposition of deferred adjudication for an offense.

M. The Department of Wildlife Conservation shall promulgate any rules necessary to implement the provisions of this section.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 11th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 5th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____